

demonstrated that Plaintiff's claims against Snorkel may be compelled to arbitration under the Arbitration Agreement and the valid delegation clause.

Final Conclusion

HireArt and Snorkel have demonstrated the existence of an Arbitration Agreement entered into by Plaintiff. It is undisputed by the parties that HireArt is a party to the ICA with the Arbitration Agreement which Plaintiff signed reflecting his engagement for the services subject to his claims in the 2AC. HireArt and Snorkel have demonstrated based on Plaintiff's agency and joint employer allegations in the 2AC and applicable law that Snorkel may compel arbitration of Plaintiff's claims against Snorkel as well as HireArt. Plaintiff has not demonstrated that the delegation clause in the Arbitration Agreement is both procedurally and substantively unconscionable. It is therefore valid, effective and enforceable.

Plaintiff's arguments regarding the unenforceability of the Arbitration Agreement for unconscionability of the agreement as whole, or the unconscionability or unenforceability of the ICA, and the misclassification of his employment and validity of his designated independent contractor status, can be addressed with the arbitrator. Nothing in this ruling shall be construed to limit Plaintiff's ability to raise and address such arguments in arbitration.

11. 9:00 AM CASE NUMBER: C25-01312
CASE NAME: YANHUA XU VS. CHIACHIA HSU
***HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS AND REQUEST FOR ATTORNEY'S FEES AND COSTS**
FILED BY: HSU, CHIACHIA
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to April 13, 2026, 9:00 am in Department 34. The Court shall issue the order.

12. 9:00 AM CASE NUMBER: C25-01920
CASE NAME: CYNTHIA HARRISON VS. MATTHEW SARABIA
HEARING IN RE: MOTION TO QUASH SERVICE
FILED BY:
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to April 13, 2026, 9:00 am in Department 34. The Court shall issue the order.

13. 9:00 AM CASE NUMBER: C25-02117
CASE NAME: AMAL DIAS VS. MECHANICS BANK
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MECHANICS BANK
TENTATIVE RULING:

Before the Court is Mechanics Bank's ("Defendant") demurrer. The demurrer relates to Amal Dias and Shamila Weerkkody's (collectively "Plaintiffs") First Amended Complaint for (1) Violation of section 4A of the Uniform Commercial Code, (2) Breach of Contract, (3) Fraudulent Inducement, (4) Gross Negligence, (5) Breach of Fiduciary Duty, (6) Conversion, (7) Violation of California Business and Professions Code section 17200, and (8) Violation of Penal Code section 496⁴¹.

Pursuant to California Code of Civil Procedure section 430.10, Defendant demurs to all eight of the causes of action in Plaintiffs' First Amended Complaint on the grounds that Plaintiffs' non-Commercial Code claims are displaced by division 11 of the California Commercial Code under the court's holding in *Zengen, Inc. v. Comerica Bank* (2007) 41 Cal.4th 239, and that each claim independently fails to state facts sufficient to constitute a cause of action.

Plaintiffs oppose Defendant's demurrer on the grounds that displacement under *Zengen* is narrow and does not reach claims arising from pre- and post-transfer conduct, and that each cause of action is adequately pled.

For the following reasons, Defendant's demurrer to Plaintiffs' first cause of action is **SUSTAINED WITH LEAVE TO AMEND**, while Defendant's demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND** as to Plaintiffs' second, third, fourth, fifth, sixth, seventh, and eighth causes of action.

Any amended complaint shall be filed and served 15 days from the date of this order.

I. Factual Allegations and Background

This case arises out of a banking dispute over an allegedly misrouted or delayed wire transfer.

Plaintiffs Amal Dias and Shamila Weerkkody are husband and wife. (First Amended Complaint ("FAC") at 1:20-21.) Mr. Dias entered into a real estate contract to purchase a fully furnished two-bedroom apartment in Colombo, Sri Lanka for 80,000,000 Rupees ("Rs") on January 21, 2025. (FAC at 2:11-12; Exhibit A.) The real estate contract required a non-refundable cash deposit of 20 percent of the purchase price – 16,000,000 Rs – and a promise to remit the 64,000,000 Rs balance by February 14, 2025. (FAC at Exhibit A.) The agreement contained the following provision: "Failure to remit the balance by [February 14, 2025,] will result in termination of this agreement, and the deposited funds will be forfeited by the seller due to grave loss of opportunity." (*Id.*)

Plaintiffs initiated a Foreign Exchange Wire Transfer with Defendant Mechanics Bank on January 29, 2025, for \$279,000 U.S. Dollars ("USD") to be delivered to a designated recipient in Sri Lanka. (FAC at 2:14-16; Exhibit B.) Plaintiffs provided Mechanics Bank with the recipient's full banking information, SWIFT code, account number, and the purpose for the wire transfer. (FAC at 2:19-21.) The receipt for